

CONTRACTOR ACKNOWLEDGEMENT



The intent of this document is to ensure that contractors and parties providing construction services in the construction of Anytime Fitness clubs have received a copy of the Design Compliance Packet required by Anytime Fitness, LLC, and that Anytime Fitness franchisees acknowledge that the construction of their clubs are subject to mandatory specifications. This document is not meant to replace a written agreement between the Anytime Fitness franchisee and its contractor or any party providing construction, or any applicable federal, state or local laws or regulations which may apply. Anytime Fitness, LLC makes no representation to either party as to the enforceability of any provision set forth herein on behalf of such party, and each signatory should review all agreements with their own professional advisors.

CONTRACTOR ACKNOWLEDGEMENT

The undersigned ("Contractor") certifies that it / he / she is being retained to provide construction services and/or project management for an Anytime Fitness fitness center to be located at:

Address _____

Contractor acknowledges that the Anytime Fitness Center is subject to a Franchise Agreement with Anytime Fitness, LLC ("Franchisor").

This acknowledgment certifies contractor receipt and review of the Franchisor's Design Compliance Packet, dated _____ (see cover of Design Compliance Packet), containing the required specifications of Franchisor with respect to the Anytime Fitness club, and fully understands the requirements set forth therein, including without limitation, with respect to materials required to be used. Contractor acknowledges and agrees that any variance from the Design Compliance Packet shall require Franchisor's prior written approval, and that material substitutions are not allowed. Any variance from the specifications set forth in the Design Compliance Packet not approved by Franchisor in writing must be remedied at Contractor's expense. By signing this acknowledgment, the undersigned represents that he or she is duly authorized and has legal capacity to execute and deliver this acknowledgment on behalf of contractor.

Contractor Name _____

Signature _____

Print Name _____

Title _____

Date _____

**FRANCHISEE TO SUBMIT THIS COMPLETED FORM AND THEIR
SCHEDULE OF VALUES (SOV) TO THEIR CDM PRIOR TO OPENING**